

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

JIMEX USA, INC., *Claimant*

v.

UNITRANS-PRA CO., INC., *Respondent*.

DOCKET NO. 2036(I)

Served: July 23, 2026

ORDER OF: Jamie L. Mendelson, *Small Claims Officer*.

ORDER DENYING RESPONDENT'S REQUEST FOR EXTENSION OF TIME TO FILE PETITION FOR RECONSIDERATION

An Initial Decision was issued in this matter on July 16, 2026. Pursuant to the Federal Maritime Commission's ("Commission's") Rules of Practice and Procedure ("Rules"), the decision shall be final unless, within 30 days of the date of service of the decision, the Commission exercises its discretionary right to review the decision. 46 C.F.R. § 502.304(g). Also within 30 days within the date of service of the decision, any party may file a petition for reconsideration directed to the Small Claims Officer ("SCO").¹ *Id.* Thus, either party may file a petition for reconsideration in this matter by August 17, 2026.² A petition for reconsideration, once filed, "shall act as a stay" of the 30-day period for the Commission to exercise its discretionary right to review the decision. *Id.*

On July 13, 2026, prior to the issuance of the decision, Respondent sent correspondence by email to the Office of Administrative Law Judges and the Secretary of the Commission which stated:

As a courtesy to the Commission, Respondent also wishes to advise that, due to vacation arrangements made approximately one year ago, Respondent will be on vacation from **August 2, 2026, through September 7, 2026**, including travel outside the United States with limited access to the internet. This notice is

¹ "A petition [for reconsideration] will be subject to summary rejection unless it: (1) Specifies that there has been a change in material fact or in applicable law, which change has occurred after the issuance of the decision or order; (2) identifies a substantive error in material fact contained in the decision or order; (3) addresses a material matter in the Small Claims Officer's decision upon which the petitioner has not previously had the opportunity to comment. Petitions which merely elaborate or repeat arguments made prior to the decision or order will not be received." 46 C.F.R. 502.304(g).

² Because the 30 days falls on a Saturday, the time period continues to the next Monday, August 17, 2026. See 46 C.F.R. §§ 502.101 (computation of time), 502.305(b) (applying § 502.101 in small claims procedures).

provided solely in the event that any further Order or other time-sensitive filing becomes necessary during that period.

(Emphasis in original).

On July 22, 2026, six days after the issuance of the decision, Respondent submitted a request for an extension of time to file a petition for reconsideration, from August 17, 2026, to October 7, 2026. Respondent contends good cause for the requested extension exists because, prior to the issuance of the decision, he provided notification by email that he would be outside the United States from August 2, 2026, through September 7, 2026, with limited internet access. Respondent further argues that “[t]his matter involves a substantial administrative record” which “consists of nearly one thousand pages of documentary evidence,” and that “[p]reparing a Petition for Reconsideration requires substantially more than reviewing the thirty-seven-page Initial Decision.” Respondent further justifies the request for a 51-day extension on the basis that it will provide him with 30-days commencing upon the day after his return from vacation on September 7, 2026.

Respondent’s request for an extension is **DENIED**. The informal procedure for adjudication of small claims was “put in place by the Commission to provide a streamlined and low-cost procedure for complainants with relatively small claims to *expeditiously* and efficiently resolve Shipping Act disputes of a relatively modest monetary value without the time and expense of a formal procedure before an Administrative Law Judge.” *TWC, Inc. v. Hapag-Lloyd LLC*, Dkt. No. 1992(I), 2025 WL 843336 at *7 (FMC Mar. 12, 2025) (Dye concurrence) (emphasis added). These procedures do not provide for a mechanism to extend the timeframe set forth in 46 C.F.R. § 502.304(h) to request reconsideration. Moreover, an extension itself would not operate to toll the time set forth in § 502.304(g) for the Commission’s review period.³

It is **ORDERED** that Respondent’s Request for Extension of Time to File Petition for Reconsideration is **DENIED**.

SO ORDERED

Jamie L.
Mendelson -S Digitally signed
by Jamie L.
Mendelson -S

Jamie L. Mendelson
Small Claims Officer

³ Upon filing a petition for reconsideration that complies with the requirements set forth in 46 C.F.R. § 502.304(h), the Commission’s review period is tolled until the issuance of a decision or order on reconsideration by the SCO. *Id.*